

SENATE BILL 2335

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 39,
relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-14-406(a), is amended by
deleting the subsection and substituting:

(a) A person commits aggravated criminal trespass who enters or remains on
property when:

(1) The person knows the person does not have the property owner's
effective consent to do so; and

(2)

(A) The person intends, knows, or is reckless about whether such
person's presence will cause fear for the safety of another;

(B) The person, in order to gain entry to the property, destroys,
cuts, vandalizes, alters, or removes a gate, signage, fencing, lock, chain
or other barrier designed to keep trespassers from entering the property;

(C) The person, while on the property, recklessly damages the
property or personal property thereon; or

(D) The person disrupts a religious assembly within a structure on
the property.

SECTION 2. Tennessee Code Annotated, Section 39-14-406(c), is amended by adding
the following as a new subdivision:

(4) Aggravated criminal trespass that involves disruption of a religious assembly
is a Class A misdemeanor.

SECTION 3. Tennessee Code Annotated, Section 39-14-406(c)(1), is amended by deleting the language "subdivisions (c)(2) and (3)" and substituting "subdivisions (c)(2)-(4)".

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.